

sound discretion, a court may determine it is “more appropriate and just to treat a corporation’s failure to be represented by an attorney as a defect that may be corrected[.]” (*Ibid.*)

Here, the plaintiff fails to show that the defendant’s failure to obtain new representation amounts to an incurable defect at this time. Defendant’s prior counsel filed defendant’s answer with no glaring defect that would warrant striking the answer. Further, the order granting defense counsel’s withdrawal was only recently entered, and therefore, the court permits the defendant a reasonable amount of additional time to seek and obtain new counsel. The motion is denied without prejudice.

The court on its own motion sets the case for an order to show cause hearing regarding defendant’s representation and possible striking of the answer on **November 3, 2026 at 9:00 a.m. in Department 32**. Plaintiff shall file and serve notice of entry of this order by September 25, 2026.

2. M-CV-0097614 LHE Woodcreek W. Apts. v. Alomar, Mohanad

This tentative ruling is issued by **Commissioner Albert A. Erkel**. Oral argument will be heard on **September 15, 2026 at 8:30 a.m. in Department 30 by Commissioner Erkel**. Department 30 is located at 10820 Justice Center Drive, Roseville, California 95678.

Motion to Set Aside Judgment

Defendant Mohanad Alomar moves to set aside judgment pursuant to Code of Civil Procedure section 473(b). Plaintiff opposes the motion.

The court may “upon any terms as may be just” set aside an order due to the moving party’s “mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) A motion to set aside an order must be made “within a reasonable time, in no case exceeding six months” from the entry of the order. (*Ibid.*) A party seeking Section 473(b) relief must demonstrate due diligence, even when the motion is brought within the six-month period. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982; Code Civ. Proc., § 473, subd. (b).) Here, the motion is timely filed as it was filed mere days after judgment was entered and defendant subsequently sought and obtained an order shortening time to have the hearing advanced. As to grounds for relief, defendant argues they were out of state and booked a flight to return to California for the trial. Defendant argues that the flight was delayed for an operational issue and for a weather issue, so the second leg of the flight had to be rescheduled. Defendant states they arrived at the Sacramento airport at 9:30 a.m. the morning of trial, and while they came directly to the courthouse, the trial was already over. While these facts, if supported, may well show “mistake, inadvertence, surprise, or excusable neglect,” they are unsupported by any evidence as defendant provides no declaration. As such, there is no evidence on which the court could grant the requested relief.

Rather than deny the motion outright as unsupported by evidence, the personal appearance of the parties at the hearing is required on **September 15, 2026 at 8:30 a.m. in Department 30 by Commissioner Erkel**. Department 30 is located at 10820 Justice Center Drive, Roseville, California 95678. Defendant Mohanad Alomar should be prepared to testify as to the grounds supporting the motion to set aside judgment.

3. S-CV-0043323 Miller, Scott A v. Dolmo, Bess-Carolina

These tentative rulings are issued by the **Honorable Charles D. Wachob**. If oral argument is requested, it will be heard on **September 24, 2026 at 8:30 a.m. in Department 2** by the Honorable Charles D. Wachob. Department 2 is located at 101 Maple Street, Auburn, California 95603. If the party who requests oral argument is late appearing, the court will adopt the tentative ruling.

Motion to Set Aside / Reconsider April 9, 2026 Rulings

Ms. Dolmo moves to set aside the court's April 9, 2026 rulings pursuant to Code of Civil Procedure section 473(b) and to reconsider its rulings pursuant to Code of Civil Procedure section 1008. This motion concerns the court's April 9, 2026 order granting Northern California Fertility Medical Center ("The Clinic")'s motion to enforce settlement, the court's April 9, 2026 order denying Ms. Dolmo's motion for contempt, for which oral argument was heard the same day (law and motion minutes, Apr. 9, 2026; order on CCP § 664.6, Apr. 9, 2026); and the court's ruling on submitted matter heard at oral argument on February 20, 2026 with a ruling on submitted matter issued on April 9, 2026 (Ruling on submitted matter, Apr. 9, 2026). The Clinic opposes the motion.

Preliminarily, the court's April 9, 2026 ruling Ms. Dolmo now challenges came about to enforce the parties' global settlement agreement whereby Mr. Miller would dismiss his claims and Ms. Dolmo agreed to dismiss her claims. The agreement was entered into on August 4, 2025, where the parties including Ms. Dolmo affirmed the terms of the agreement under oath in open court on August 4, 2025, as recorded in the court minutes. (Court minutes, Aug. 4, 2025.) As a result of that global settlement, Ms. Dolmo not only dismissed her claims but claims against her were also dismissed. (Civil law and motion minutes, Apr. 9, 2026.)

The court may "upon any terms as may be just" set aside an order due to the moving party's "mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) A motion to set aside an order must be made "within a reasonable time, in no case exceeding six months" from the entry of the order. (*Ibid.*) A party seeking Section 473(b) relief must demonstrate due diligence, even when the motion is brought within the six-month period. (*Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 982; Code Civ. Proc., § 473, subd. (b).) Here, Ms. Dolmo argues the court's tentative ruling on April 7, 2026 scheduling oral argument for April 9, 2026 provided insufficient notice pursuant to Code of Civil Procedure section 1005(b). This argument is misplaced because Section 1005(b) sets forth the notice a party must provide for a noticed motion; it does not limit the court as to when oral argument on a noticed motion will be heard. Ms. Dolmo argues that she